

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

7. DUNIA LANDAVERDE V. ANGEL LANDAVERDE

23FL0394

On January 14, 2026, Petitioner filed a Request for Order (RFO) seeking a variety of orders. The RFO was served on January 22nd.

Respondent filed and served a Responsive Declaration to Request for Order on January 23rd. He filed a second Responsive Declaration to Request for Order along with his Income and Expense Declaration on March 6th.

On February 11, 2026, Respondent filed an RFO seeking attorney's fees and costs. It was served on February 12th.

Petitioner is requesting an order granting her temporary exclusive use, possession, and control of the 2017 Toyota Tacoma. She also requests guideline spousal and child support and orders regarding uninsured medical expenses and any additional orders the court deems necessary. She is also asking the court to make orders precluding the children from traveling outside of the country without the prior written consent of the other party; and an order for the return of the children's passports to her. Finally, she requests \$5,000 in need-based attorney's fees.

Respondent requests guideline spousal and child support payable to him. He asks that the court reserve jurisdiction on the issue of arrears. Additionally, he opposes the request for attorney's fees and asks that fees be awarded to him in the amount of \$1,950 pursuant to Family Code § 6344 based on the Request for Domestic Violence Restraining Order (DVRO) which was filed by Petitioner but was never served and was ultimately dismissed. Regarding the request for consent to out-of-country travel, Respondent notes that on December 11, 2025, the court adopted CCRC recommendations which included an order for the parties to approve any out-of-country travel by the children. Finally, Respondent requests sanctions in the amount of \$750 but does not specify the basis for this request.

Regarding the request for the 2017 Toyota Tacoma, the court is maintaining its ex parte order awarding Petitioner possession of the BMW.

The request regarding consent for out-of-country travel is granted. All prior orders regarding travel with the children remain in full force and effect. In addition to those orders, the court is requiring the traveling party to obtain the prior written consent of the other party before the traveling party may leave the country with the children. The non-traveling party may not unreasonably withhold his or her consent.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

The request for possession of the children's passports is denied. Petitioner has failed to establish how such an order would be in the best interests of the children at this time.

Given the recent termination of Respondent's employment due to the allegations made by Petitioner, the court is ordering support payable by Petitioner to Respondent. Utilizing the figures outlined in the attached Xspouse report the court finds that spousal support per the Alameda formula is \$619 per month and child support is \$987 per month. The court adopts the attached Xspouse report and orders Petitioner to pay Respondent \$1,606 per month as and for child support and temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of March 1, 2026.

The court is reserving jurisdiction over arrears until the time of trial.

Turning to Petitioner's request for attorney's fees, the request is denied. In the face of a request for attorney's fees and costs under Family Code § 2030, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Here, Respondent was recently terminated from his employment. As such, the court does not find that he has the ability to pay and therefore Petitioner's request for need-based attorney's fees is denied.

Turning to the request for attorney's fees made by Respondent, his request is pursuant to Family Code § 6344. Family Code section 6344 is the mechanism by which a prevailing party on a DVRO request may recover their attorney's fees and costs. If the prevailing party was the party that defended against the DVRO the court "may" issue an order for the payment of attorney's fees "only if the respondent establishes by a preponderance of the evidence that the petition or request is frivolous or solely intended to abuse, intimidate, or cause unnecessary delay." Fam. Code § 6344(b). However, "[b]efore a court awards attorney's fees and costs pursuant to this section, the court shall first determine pursuant to Section 270 that the party ordered to pay has, or is reasonably likely to have, the ability to pay." *Id.* at (c).

In this matter the request for a DVRO was filed by Petitioner just before the initial custody hearing. The court denied a temporary DVRO and Petitioner never served her moving papers so her request was ultimately denied. The District Attorney has not filed charges based on Petitioner's claim and Petitioner did not identify any acts of physical

LAW & MOTION TENTATIVE RULINGS
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abuse during CCRC. Given the surrounding circumstances, it does appear that the DVRO request may have been filed solely with the intent to cause unnecessary delay in the custody proceedings. That said, Petitioner is being ordered to pay support to Respondent and she must continue to support herself and the children. Under the circumstances, the court does not find that Petitioner has the ability to pay the attorney's fees requested. The request is therefore denied.

Finally, Respondent's request for sanctions against Petitioner is denied as Respondent has failed to cite any legal basis for the requested sanctions nor made any argument in that regard.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: REGARDING THE REQUEST FOR THE 2017 TOYOTA TACOMA, THE COURT IS MAINTAINING ITS EX PARTE ORDER AWARDING PETITIONER POSSESSION OF THE BMW.

THE REQUEST REGARDING CONSENT FOR OUT-OF-COUNTRY TRAVEL IS GRANTED. ALL PRIOR ORDERS REGARDING TRAVEL WITH THE CHILDREN REMAIN IN FULL FORCE AND EFFECT. IN ADDITION TO THOSE ORDERS, THE COURT IS REQUIRING THE TRAVELING PARTY TO OBTAIN THE PRIOR WRITTEN CONSENT OF THE OTHER PARTY BEFORE THE TRAVELING PARTY MAY LEAVE THE COUNTRY WITH THE CHILDREN. THE NON-TRAVELING PARTY MAY NOT UNREASONABLY WITHHOLD HIS OR HER CONSENT.

THE REQUEST FOR POSSESSION OF THE CHILDREN'S PASSPORTS IS DENIED. PETITIONER HAS FAILED TO ESTABLISH HOW SUCH AN ORDER WOULD BE IN THE BEST INTERESTS OF THE CHILDREN AT THIS TIME.

THE COURT IS ORDERING SUPPORT PAYABLE BY PETITIONER TO RESPONDENT. UTILIZING THE FIGURES OUTLINED IN THE ATTACHED XSPOUSE REPORT THE COURT FINDS THAT SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$619 PER MONTH AND CHILD SUPPORT IS \$987 PER MONTH. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS PETITIONER TO PAY RESPONDENT \$1,606 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF MARCH 1, 2026.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

THE COURT IS RESERVING JURISDICTION OVER ARREARS UNTIL THE TIME OF TRIAL.

TURNING TO PETITIONER'S REQUEST FOR ATTORNEY'S FEES, THE REQUEST IS DENIED. THE COURT DOES NOT FIND THAT RESPONDENT HAS THE ABILITY TO PAY.

TURNING TO THE REQUEST FOR ATTORNEY'S FEES MADE BY RESPONDENT, THE COURT FINDS THAT PETITIONER DOES NOT HAVE THE ABILITY TO PAY AND THEREFORE THE REQUEST IS DENIED.

FINALLY, RESPONDENT'S REQUEST FOR SANCTIONS AGAINST PETITIONER IS DENIED AS RESPONDENT HAS FAILED TO CITE ANY LEGAL BASIS FOR THE REQUESTED SANCTIONS NOR MADE ANY ARGUMENT IN THAT REGARD.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow		
#of children	0	2	2026		Guideline	Proposed
	49.99 %	0.00 %		Comb. net spendable	3743	3743
	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%
	1 *	3 *	Nets(adjusted)	Father		
	0	3613	Father	0		
	0	0	Mother	3743	Payment cost/benefit	1606
	0	0	Total	3743	Net spendable income	1606
	0	0	Support		Change from guideline	0
	0	0	Addons	0	% of combined spendable	43%
	0	0	Guideln CS	987	% of saving over guideline	0%
	0	0	Alameda SS	619	Total taxes	0
	0	0	Total	1606	Dep. exemption value	0
	0	0	-		# withholding allowances	0
	0	0			Net wage paycheck	0
	0	0		Mother		
	0	0		Payment cost/benefit	-1606	-1606
	0	0		Net spendable income	2137	2137
	0	0	Proposed	Change from guideline	0	0
	0	0	Tactic 9	% of combined spendable	57%	57%
	0	0	CS	987	% of saving over guideline	0%
	0	0	SS	619	Total taxes	-166
	0	36	Total	1606	Dep. exemption value	0
	0	0			# withholding allowances	0
	0 *	0 *	Saving	0	Net wage paycheck	2993
	0	0	Releases	0		2993
	0	0				

Mother pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Father	987	Mother	987	Mother
	49 - 51	0	0	0	Father	448	Mother	448	Mother
	49 - 51	0	0	0	Father	539	Mother	539	Mother

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
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10. DANIEL J. RUSSELL V. ELIZABETH A. RUSSELL

PFL20200387

On December 30, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and child support. He filed his Income and Expense Declaration concurrently therewith. There is no Proof of Service for either document.

On January 6, 2026, the Central Sierra Child Support Agency filed a Notice Regarding Payment of Support: Substitution of Payee.

Respondent filed and served her Responsive Declaration to Request for Order on March 13, 2026. She did not file or serve an Income and Expense Declaration.

Petitioner is requesting custody and visitation orders but he does not specify exactly what he is asking the court to order. He is also asking the court to make child support orders but again, he does not specify what exactly he wants ordered.

The request for child support is dropped from calendar due to Petitioner's failure to serve the child support services agency which has substituted in as payee.

Regarding the requested custody orders, due to the ambiguity in Petitioner's moving papers, the court cannot find that the requested orders are in the best interests of the minors when the court doesn't know what is being requested. Accordingly, the RFO is denied.

All prior orders remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE REQUEST FOR CHILD SUPPORT IS DROPPED FROM CALENDAR DUE TO PETITIONER'S FAILURE TO SERVE THE CHILD SUPPORT SERVICES AGENCY WHICH HAS SUBSTITUTED IN AS PAYEE. THE REQUESTED CUSTODY ORDERS ARE DENIED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR